COMMERCIAL AGREEMENT - RECORD 001

Helioscope Robotics, Inc. - diligence file reference COMMERCIAL_CONTRACTS-001

1. Recitals and defined terms

This Master Robotics-as-a-Service Agreement is made between Helioscope Robotics, Inc. as Provider and Asterion Logistics Holdings LLC as Customer, a third-party logistics business organised in Ohio, contracting through Asterion Logistics Holdings LLC. Asterion and the Provider have agreed that terms defined in the recitals and in Exhibit A carry the same meaning throughout, and that a defined term used in an Order has the meaning given here unless the Order expressly varies it.

Asterion bears the risk that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. Strictly, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. 6 sites in Ohio means Asterion applies the Master Robotics-as-a-Service Agreement through its regional operations team rather than through head office. The obligation as it applies to Asterion was tightened at signature, and Article 9 (Customer Obligations) carries the negotiated wording rather than the standard wording.

Asterion Logistics Holdings LLC has notified the Provider that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. As agreed, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. In third-party logistics the burden of this sits with operations, and Asterion discharges it across 6 sites under the Master Robotics-as-a-Service Agreement. Notices under Article 14 (Indemnities) go to the contracting entity named in the recital and not to any Asterion affiliate that may operate a site.

Asterion Logistics Holdings LLC undertakes that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. As it bites, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Operating 6 sites, Asterion applies the Master Robotics-as-a-Service Agreement at the point of delivery, as third-party logistics practice requires. Notices under Article 9 (Customer Obligations) go to the contracting entity named in the recital and not to any Asterion affiliate that may operate a site.

Under Article 16 (Term and Termination) of the Master Robotics-as-a-Service Agreement, personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. By way of qualification, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. 6 sites in Ohio means Asterion applies the Master Robotics-as-a-Service Agreement through its regional operations team rather than through head office. Administration of this obligation for Asterion sits with the account team rather than with central contracts, and Article 15 (Limitation of Liability) is where it is evidenced.

Asterion RaaS agreement - Schedule 3 - Deployment Milestones and Payment Triggers

Asterion milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
AST-M001	integration test passed	2025-06	15	no delay	$173,941	invoiceable on acceptance
AST-M002	units delivered	2024-12	26	no delay	$17,134	invoiceable on certification
AST-M003	network readiness certified	2025-08	8	no delay	$207,735	invoiceable on acceptance
AST-M004	steady-state handover	2026-07	2	no delay	$230,380	invoiceable on acceptance
AST-M005	steady-state handover	2025-10	23	no delay	$19,016	invoiceable on acceptance
AST-M006	warranty commencement	2024-10	25	facility readiness	$75,798	invoiceable on certification
AST-M007	pilot acceptance	2025-06	21	seasonal freeze	$151,492	invoiceable on acceptance
AST-M008	units delivered	2026-07	7	Customer IT dependency	$29,286	invoiceable on certification

Asterion milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
AST-M009	steady-state handover	2025-06	20	facility readiness	$237,554	invoiceable on acceptance
AST-M010	warranty commencement	2026-11	33	seasonal freeze	$271,983	invoiceable on acceptance
AST-M011	warranty commencement	2026-10	28	no delay	$40,110	invoiceable on acceptance
AST-M012	site survey complete	2025-10	3	labour agreement	$78,360	invoiceable on certification
AST-M013	pilot acceptance	2024-06	16	network provisioning	$253,537	invoiceable on certification
AST-M014	full acceptance	2024-08	22	facility readiness	$236,315	no payment attached
AST-M015	steady-state handover	2025-05	13	seasonal freeze	$15,628	invoiceable on certification
AST-M016	units delivered	2024-03	2	network provisioning	$225,223	no payment attached
AST-M017	network readiness certified	2024-01	3	Customer IT dependency	$180,291	invoiceable on certification
AST-M018	pilot acceptance	2025-04	8	seasonal freeze	$270,252	invoiceable on acceptance
AST-M019	warranty commencement	2024-09	25	seasonal freeze	$152,910	no payment attached
AST-M020	integration test passed	2025-03	8	network provisioning	$189,995	no payment attached
AST-M021	integration test passed	2025-08	24	Customer IT dependency	$93,844	invoiceable on acceptance
AST-M022	pilot acceptance	2025-07	24	seasonal freeze	$30,080	invoiceable on acceptance
AST-M023	integration test passed	2026-03	5	labour agreement	$175,570	invoiceable on acceptance
AST-M024	site survey complete	2024-12	5	facility readiness	$21,339	invoiceable on acceptance
AST-M025	site survey complete	2026-09	on plan	seasonal freeze	$261,633	invoiceable on certification
AST-M026	steady-state handover	2026-07	24	no delay	$254,805	invoiceable on certification
AST-M027	network readiness certified	2024-03	12	Customer IT dependency	$214,070	invoiceable on certification
AST-M028	network readiness certified	2026-12	3	facility readiness	$255,645	invoiceable on acceptance
AST-M029	steady-state handover	2025-02	11	no delay	$12,177	invoiceable on acceptance
AST-M030	site survey complete	2024-07	6	Customer IT dependency	$88,965	invoiceable on acceptance
AST-M031	warranty commencement	2026-05	30	no delay	$187,722	invoiceable on acceptance
AST-M032	integration test passed	2024-03	24	labour agreement	$222,992	invoiceable on acceptance
AST-M033	units delivered	2024-03	7	Customer IT dependency	$116,093	no payment attached
AST-M034	integration test passed	2026-04	33	no delay	$206,435	invoiceable on acceptance
AST-M035	integration test passed	2025-04	4	labour agreement	$53,665	no payment attached
AST-M036	steady-state handover	2024-04	17	seasonal freeze	$114,072	invoiceable on acceptance
AST-M037	network readiness certified	2025-03	27	Customer IT dependency	$231,900	invoiceable on acceptance
AST-M038	integration test passed	2024-05	30	Customer IT dependency	$35,033	invoiceable on acceptance
AST-M039	integration test passed	2025-06	25	facility readiness	$98,392	no payment attached
AST-M040	warranty commencement	2024-11	24	seasonal freeze	$75,658	no payment attached
AST-M041	site survey complete	2025-10	32	no delay	$108,018	invoiceable on acceptance
AST-M042	warranty commencement	2024-06	32	no delay	$208,993	invoiceable on certification

Asterion milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
AST-M043	warranty commencement	2025-03	2	labour agreement	$88,219	no payment attached
AST-M044	units delivered	2026-03	6	network provisioning	$197,335	no payment attached
AST-M045	units delivered	2026-05	4	no delay	$71,063	invoiceable on certification
AST-M046	pilot acceptance	2026-07	25	no delay	$100,454	invoiceable on acceptance
AST-M047	site survey complete	2024-01	32	labour agreement	$63,443	invoiceable on certification
AST-M048	steady-state handover	2024-07	19	seasonal freeze	$88,060	invoiceable on acceptance
AST-M049	integration test passed	2024-08	10	network provisioning	$214,841	invoiceable on certification
AST-M050	steady-state handover	2026-02	25	network provisioning	$32,579	invoiceable on acceptance
AST-M051	pilot acceptance	2024-12	8	Customer IT dependency	$126,870	no payment attached
AST-M052	network readiness certified	2025-01	20	facility readiness	$56,666	invoiceable on acceptance
AST-M053	steady-state handover	2024-10	7	network provisioning	$64,376	no payment attached
AST-M054	warranty commencement	2025-10	24	seasonal freeze	$153,138	invoiceable on acceptance
AST-M055	units delivered	2025-11	8	no delay	$269,336	invoiceable on certification
AST-M056	site survey complete	2026-05	26	no delay	$51,735	invoiceable on acceptance
AST-M057	units delivered	2026-10	2	labour agreement	$78,539	invoiceable on certification
AST-M058	integration test passed	2024-10	8	Customer IT dependency	$146,432	no payment attached
AST-M059	site survey complete	2024-01	4	labour agreement	$19,370	invoiceable on certification
AST-M060	integration test passed	2026-10	6	Customer IT dependency	$172,990	no payment attached
AST-M061	pilot acceptance	2026-01	24	facility readiness	$21,984	invoiceable on certification
AST-M062	site survey complete	2024-08	22	Customer IT dependency	$252,728	invoiceable on acceptance
AST-M063	warranty commencement	2026-06	26	seasonal freeze	$31,200	invoiceable on certification
AST-M064	steady-state handover	2026-02	15	network provisioning	$77,695	invoiceable on certification
AST-M065	units delivered	2025-07	2	seasonal freeze	$20,790	invoiceable on certification
AST-M066	site survey complete	2024-10	33	no delay	$174,016	no payment attached
AST-M067	integration test passed	2025-10	26	no delay	$49,254	invoiceable on certification
AST-M068	full acceptance	2026-07	27	facility readiness	$18,803	invoiceable on certification
AST-M069	site survey complete	2024-10	25	Customer IT dependency	$110,845	invoiceable on acceptance
AST-M070	steady-state handover	2024-06	8	network provisioning	$55,267	invoiceable on acceptance
AST-M071	network readiness certified	2024-01	18	facility readiness	$125,484	invoiceable on acceptance
AST-M072	full acceptance	2026-10	9	facility readiness	$23,136	invoiceable on certification
AST-M073	steady-state handover	2026-11	21	seasonal freeze	$222,734	no payment attached
AST-M074	pilot acceptance	2026-01	24	Customer IT dependency	$244,166	no payment attached
AST-M075	full acceptance	2025-03	14	labour agreement	$240,803	no payment attached
AST-M076	steady-state handover	2026-08	16	seasonal freeze	$51,014	invoiceable on acceptance

Asterion milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
AST-M077	pilot acceptance	2026-11	21	seasonal freeze	$89,724	invoiceable on acceptance
AST-M078	integration test passed	2025-10	on plan	no delay	$90,519	invoiceable on acceptance
AST-M079	warranty commencement	2024-08	16	network provisioning	$96,060	invoiceable on certification
AST-M080	full acceptance	2026-01	29	no delay	$16,792	no payment attached
AST-M081	pilot acceptance	2026-08	19	labour agreement	$70,400	invoiceable on acceptance
AST-M082	steady-state handover	2026-04	28	network provisioning	$58,429	no payment attached
AST-M083	integration test passed	2026-01	10	seasonal freeze	$202,132	invoiceable on certification
AST-M084	full acceptance	2025-05	11	facility readiness	$271,630	invoiceable on certification
AST-M085	units delivered	2026-07	23	network provisioning	$205,356	no payment attached
AST-M086	units delivered	2024-08	20	facility readiness	$200,259	no payment attached

2. Scope of supply and orders

Nothing in Exhibit D entitles Asterion to assume that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. As between them, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Running 6 sites in third-party logistics, Asterion takes this obligation at site level rather than centrally under the Master Robotics-as-a-Service Agreement. Because Asterion operates in third-party logistics, the practical burden of this clause falls on its Ohio operation, and Article 14 (Indemnities) governs how it is measured.

Asterion bears the risk that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. By way of qualification, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Site count matters here: Asterion has 6 sites, and the Master Robotics-as-a-Service Agreement treats each as a separate delivery point. Notices under Article 7 (Service Levels) go to the contracting entity named in the recital and not to any Asterion affiliate that may operate a site.

Read with Exhibit A, personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. Tighter here than standard: time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. In third-party logistics the burden of this sits with operations, and Asterion discharges it across 6 sites under the Master Robotics-as-a-Service Agreement. For a customer of Asterion's size the clause is unremarkable, but Article 8 (Acceptance) is drafted more tightly here than in the Provider's standard form.

Except as Article 6 (Fees and Payment) permits, acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. As between them, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Asterion treats the obligation as a site-level matter across its 6 sites in Ohio, consistent with the Master Robotics-as-a-Service Agreement. The obligation as it applies to Asterion was tightened at signature, and Article 18 (Assignment) carries the negotiated wording rather than the standard wording.

3. Delivery, title and risk

The Provider warrants to Asterion that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. In effect, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. This bites at Asterion's 6 sites, since a third-party logistics operator administers the Master Robotics-as-a-Service

Agreement where the units work. Because Asterion operates in third-party logistics, the practical burden of this clause falls on its Ohio operation, and Article 9 (Customer Obligations) governs how it is measured.

As between Asterion and the Provider, title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. On the operative wording, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Running 6 sites in third-party logistics, Asterion takes this obligation at site level rather than centrally under the Master Robotics-as-a-Service Agreement. The Asterion file records the position as at the last amendment, and Article 6 (Fees and Payment) is the reference a reviewer should cite when raising it.

Neither Asterion nor the Provider may treat Article 19 (Confidentiality) as permitting the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. On the operative wording, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Running 6 sites in third-party logistics, Asterion takes this obligation at site level rather than centrally under the Master Robotics-as-a-Service Agreement. The obligation as it applies to Asterion was tightened at signature, and Article 11 (Data and Telemetry) carries the negotiated wording rather than the standard wording.

Under Article 5 (Delivery and Title) of the Master Robotics-as-a-Service Agreement, the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. By way of qualification, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. This bites at Asterion's 6 sites, since a third-party logistics operator administers the Master Robotics-as-a-Service Agreement where the units work. Because Asterion operates in third-party logistics, the practical burden of this clause falls on its Ohio operation, and Article 6 (Fees and Payment) governs how it is measured.

Asterion RaaS agreement - Exhibit C - Service Levels and Credit Ladder

Asterion service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
AST-L001	resolution time	90.5%	9% of monthly fee	29% of monthly fee	excluding scheduled maintenance	credit only
AST-L002	response time	91.7%	4% of monthly fee	17% of monthly fee	excluding force majeure	credit then termination right
AST-L003	resolution time	96.1%	2% of monthly fee	9% of monthly fee	excluding force majeure	credit only
AST-L004	resolution time	95.0%	2% of monthly fee	18% of monthly fee	excluding scheduled maintenance	credit then termination right
AST-L005	availability	91.2%	8% of monthly fee	13% of monthly fee	excluding Customer-caused outage	credit only
AST-L006	response time	93.9%	6% of monthly fee	7% of monthly fee	excluding force majeure	credit only
AST-L007	throughput	90.4%	9% of monthly fee	28% of monthly fee	excluding Customer-caused outage	credit then termination right
AST-L008	resolution time	95.3%	6% of monthly fee	6% of monthly fee	excluding force majeure	credit only
AST-L009	throughput	97.5%	2% of monthly fee	16% of monthly fee	no exclusion	credit only
AST-L010	availability	92.2%	3% of monthly fee	30% of monthly fee	no exclusion	credit only
AST-L011	resolution time	94.9%	4% of monthly fee	8% of monthly fee	excluding scheduled maintenance	credit only
AST-L012	response time	90.1%	8% of monthly fee	18% of monthly fee	excluding force majeure	credit then termination right
AST-L013	resolution time	96.6%	1% of monthly fee	19% of monthly fee	excluding force majeure	credit only
AST-L014	resolution time	91.5%	10% of monthly fee	10% of monthly fee	excluding Customer-caused outage	credit then termination right
AST-L015	availability	90.4%	1% of monthly	18% of monthly	excluding	credit only

Asterion service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
			fee	fee	scheduled maintenance	
AST-L016	response time	95.4%	1% of monthly fee	10% of monthly fee	no exclusion	credit only
AST-L017	throughput	96.5%	5% of monthly fee	15% of monthly fee	no exclusion	credit only
AST-L018	throughput	95.2%	10% of monthly fee	29% of monthly fee	no exclusion	credit then termination right
AST-L019	response time	91.2%	4% of monthly fee	14% of monthly fee	excluding force majeure	credit only
AST-L020	response time	90.3%	11% of monthly fee	14% of monthly fee	excluding scheduled maintenance	credit only
AST-L021	throughput	92.9%	12% of monthly fee	7% of monthly fee	excluding force majeure	credit then termination right
AST-L022	availability	97.0%	9% of monthly fee	25% of monthly fee	excluding force majeure	credit then termination right
AST-L023	resolution time	93.7%	4% of monthly fee	15% of monthly fee	excluding Customer-caused outage	credit then termination right
AST-L024	throughput	97.8%	2% of monthly fee	18% of monthly fee	no exclusion	credit only
AST-L025	response time	90.8%	5% of monthly fee	6% of monthly fee	excluding scheduled maintenance	credit then termination right
AST-L026	availability	96.8%	9% of monthly fee	21% of monthly fee	excluding force majeure	credit then termination right
AST-L027	throughput	90.1%	2% of monthly fee	14% of monthly fee	excluding scheduled maintenance	credit only
AST-L028	availability	95.6%	3% of monthly fee	16% of monthly fee	no exclusion	credit then termination right
AST-L029	resolution time	93.4%	6% of monthly fee	5% of monthly fee	excluding force majeure	credit then termination right
AST-L030	resolution time	92.3%	5% of monthly fee	5% of monthly fee	excluding force majeure	credit only
AST-L031	availability	98.1%	11% of monthly fee	6% of monthly fee	excluding Customer-caused outage	credit then termination right
AST-L032	resolution time	94.0%	6% of monthly fee	20% of monthly fee	excluding Customer-caused outage	credit only
AST-L033	response time	94.1%	1% of monthly fee	30% of monthly fee	excluding Customer-caused outage	credit then termination right
AST-L034	resolution time	91.7%	6% of monthly fee	17% of monthly fee	excluding force majeure	credit only
AST-L035	resolution time	96.5%	6% of monthly fee	12% of monthly fee	excluding force majeure	credit only
AST-L036	availability	91.6%	2% of monthly fee	30% of monthly fee	no exclusion	credit then termination right
AST-L037	response time	98.0%	3% of monthly fee	10% of monthly fee	excluding scheduled maintenance	credit only
AST-L038	response time	93.6%	8% of monthly fee	21% of monthly fee	excluding Customer-caused outage	credit then termination right
AST-L039	throughput	95.0%	6% of monthly fee	30% of monthly fee	excluding Customer-caused outage	credit only
AST-L040	response time	95.7%	2% of monthly fee	14% of monthly fee	excluding scheduled maintenance	credit then termination right
AST-L041	throughput	91.0%	2% of monthly fee	25% of monthly fee	no exclusion	credit then termination right
AST-L042	resolution time	92.8%	11% of monthly fee	9% of monthly fee	excluding scheduled maintenance	credit only
AST-L043	throughput	98.6%	3% of monthly	13% of monthly	excluding	credit only

Asterion service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
			fee	fee	scheduled maintenance	
AST-L044	availability	95.1%	7% of monthly fee	22% of monthly fee	excluding scheduled maintenance	credit then termination right
AST-L045	throughput	92.9%	7% of monthly fee	27% of monthly fee	no exclusion	credit only
AST-L046	availability	90.2%	9% of monthly fee	12% of monthly fee	excluding Customer-caused outage	credit only
AST-L047	response time	92.6%	9% of monthly fee	10% of monthly fee	no exclusion	credit then termination right
AST-L048	throughput	96.2%	6% of monthly fee	25% of monthly fee	excluding Customer-caused outage	credit only
AST-L049	response time	92.3%	6% of monthly fee	12% of monthly fee	no exclusion	credit then termination right
AST-L050	response time	91.6%	3% of monthly fee	18% of monthly fee	excluding scheduled maintenance	credit then termination right
AST-L051	throughput	92.8%	6% of monthly fee	23% of monthly fee	excluding scheduled maintenance	credit only
AST-L052	resolution time	91.5%	9% of monthly fee	5% of monthly fee	no exclusion	credit only
AST-L053	resolution time	98.3%	5% of monthly fee	6% of monthly fee	excluding scheduled maintenance	credit only
AST-L054	response time	92.7%	8% of monthly fee	5% of monthly fee	no exclusion	credit only
AST-L055	availability	96.4%	2% of monthly fee	23% of monthly fee	excluding scheduled maintenance	credit then termination right
AST-L056	resolution time	90.4%	12% of monthly fee	21% of monthly fee	no exclusion	credit then termination right
AST-L057	response time	93.0%	5% of monthly fee	26% of monthly fee	no exclusion	credit then termination right
AST-L058	response time	90.9%	9% of monthly fee	24% of monthly fee	excluding Customer-caused outage	credit then termination right
AST-L059	throughput	91.3%	12% of monthly fee	25% of monthly fee	no exclusion	credit only
AST-L060	response time	93.2%	1% of monthly fee	24% of monthly fee	excluding scheduled maintenance	credit then termination right
AST-L061	resolution time	92.0%	9% of monthly fee	26% of monthly fee	excluding Customer-caused outage	credit then termination right
AST-L062	throughput	96.3%	5% of monthly fee	19% of monthly fee	excluding scheduled maintenance	credit only
AST-L063	response time	90.5%	8% of monthly fee	24% of monthly fee	excluding scheduled maintenance	credit then termination right
AST-L064	resolution time	98.5%	3% of monthly fee	22% of monthly fee	excluding Customer-caused outage	credit then termination right
AST-L065	response time	92.6%	1% of monthly fee	30% of monthly fee	no exclusion	credit only
AST-L066	response time	97.9%	11% of monthly fee	16% of monthly fee	excluding force majeure	credit only
AST-L067	availability	93.3%	7% of monthly fee	26% of monthly fee	no exclusion	credit then termination right
AST-L068	response time	90.9%	11% of monthly fee	23% of monthly fee	excluding scheduled maintenance	credit then termination right
AST-L069	availability	91.2%	2% of monthly fee	16% of monthly fee	excluding force majeure	credit then termination right
AST-L070	response time	97.5%	10% of monthly	13% of monthly	excluding	credit only

Asterion service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
			fee	fee	scheduled maintenance	
AST-L071	resolution time	91.0%	6% of monthly fee	5% of monthly fee	excluding Customer-caused outage	credit then termination right
AST-L072	resolution time	98.1%	1% of monthly fee	17% of monthly fee	excluding force majeure	credit then termination right
AST-L073	resolution time	95.9%	3% of monthly fee	11% of monthly fee	no exclusion	credit only
AST-L074	throughput	94.9%	2% of monthly fee	7% of monthly fee	excluding scheduled maintenance	credit then termination right
AST-L075	availability	98.4%	4% of monthly fee	9% of monthly fee	no exclusion	credit only
AST-L076	resolution time	91.3%	8% of monthly fee	30% of monthly fee	excluding force majeure	credit only
AST-L077	throughput	98.6%	1% of monthly fee	26% of monthly fee	excluding Customer-caused outage	credit then termination right
AST-L078	throughput	91.2%	8% of monthly fee	19% of monthly fee	excluding force majeure	credit only
AST-L079	resolution time	90.7%	12% of monthly fee	29% of monthly fee	excluding force majeure	credit only
AST-L080	resolution time	97.7%	1% of monthly fee	29% of monthly fee	no exclusion	credit only

4. Fees, invoicing and escalation

Asterion is not obliged, under Schedule 2, to accept that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. Per the amendment history, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Running 6 sites in third-party logistics, Asterion takes this obligation at site level rather than centrally under the Master Robotics-as-a-Service Agreement. Asterion has taken the point up once since signature; the correspondence is filed against Article 7 (Service Levels) and did not result in an amendment.

Article 5 (Delivery and Title) provides that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. On the mechanics, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. In third-party logistics the burden of this sits with operations, and Asterion discharges it across 6 sites under the Master Robotics-as-a-Service Agreement. Where Asterion has raised a query the Provider has answered by reference to Article 14 (Indemnities), and the exchange is on the contract file.

Asterion pays the fees under Schedule 3 in consideration of the Provider's undertaking that confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. Practically, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Operating 6 sites, Asterion applies the Master Robotics-as-a-Service Agreement at the point of delivery, as third-party logistics practice requires. The Asterion file records the position as at the last amendment, and Article 2 (Definitions) is the reference a reviewer should cite when raising it.

On a proper construction of Exhibit A, the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. Deliberately so: the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Running 6 sites in third-party logistics, Asterion takes this obligation at site level rather than centrally under the Master Robotics-as-a-Service Agreement. Nothing in the Asterion negotiation history qualifies Article 7 (Service Levels), and a reviewer should not read the pre-signature drafts as doing so.

5. Service levels and credits

Subject to Article 14 (Indemnities), the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. As a matter of construction, the provision survives

termination for the period stated, and the survival is not conditional on the reason for termination. Operating 6 sites, Asterion applies the Master Robotics-as-a-Service Agreement at the point of delivery, as third-party logistics practice requires. Where Asterion has raised a query the Provider has answered by reference to Article 9 (Customer Obligations), and the exchange is on the contract file.

Article 12 (Intellectual Property) of the Master Robotics-as-a-Service Agreement is to be construed so that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. Deliberately so: the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. This bites at Asterion's 6 sites, since a third-party logistics operator administers the Master Robotics-as-a-Service Agreement where the units work. Notices under Article 19 (Confidentiality) go to the contracting entity named in the recital and not to any Asterion affiliate that may operate a site.

Article 16 (Term and Termination) of the Master Robotics-as-a-Service Agreement is to be construed so that each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. By design, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. In third-party logistics the burden of this sits with operations, and Asterion discharges it across 6 sites under the Master Robotics-as-a-Service Agreement. The Asterion relationship is managed against Article 15 (Limitation of Liability) at each quarterly review, and any variance is minuted there rather than in the Order.

Read with Exhibit B, the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. On this point, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. For Asterion, a third-party logistics operator running 6 sites out of Ohio, the point matters because the Master Robotics-as-a-Service Agreement is administered site by site. The obligation as it applies to Asterion was tightened at signature, and Article 18 (Assignment) carries the negotiated wording rather than the standard wording.

6. Acceptance and change control

Under Article 9 (Customer Obligations) of the Master Robotics-as-a-Service Agreement, the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. Negotiated position: a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Because Asterion is a Ohio third-party logistics business with 6 sites, the Master Robotics-as-a-Service Agreement devolves this to the site manager. The obligation as it applies to Asterion was tightened at signature, and Article 13 (Licences) carries the negotiated wording rather than the standard wording.

Read with Schedule 5, either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. On this point, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Because Asterion is a Ohio third-party logistics business with 6 sites, the Master Robotics-as-a-Service Agreement devolves this to the site manager. The Asterion file records the position as at the last amendment, and Article 13 (Licences) is the reference a reviewer should cite when raising it.

Where Article 11 (Data and Telemetry) applies, personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. By design, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Asterion treats the obligation as a site-level matter across its 6 sites in Ohio, consistent with the Master Robotics-as-a-Service Agreement. Administration of this obligation for Asterion sits with the account team rather than with central contracts, and Article 6 (Fees and Payment) is where it is evidenced.

Asterion has agreed, and the Provider has accepted, that acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. In effect, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Ohio is where Asterion runs third-party logistics operations across 6 sites, and the Master

Robotics-as-a-Service Agreement follows that footprint. For a customer of Asterion's size the clause is unremarkable, but Article 13 (Licences) is drafted more tightly here than in the Provider's standard form.

Asterion RaaS agreement - Exhibit D - Component Prices, Lead Times and Sourcing

Asterion price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
AST-P0001	part 2403-Q	optical sensor	$257	19	450	single source	no EOL commitment
AST-P0002	part 3791-T	optical sensor	$909	17	50	qualification in progress	no EOL commitment
AST-P0003	part 3726-M	battery module	$156	8	550	dual sourced	no EOL commitment
AST-P0004	part 7791-M	optical sensor	$1,506	17	550	dual sourced	no EOL commitment
AST-P0005	part 9082-L	battery module	$170	21	600	single source	last-time-buy notice 12 months
AST-P0006	part 1020-U	controller board	$2,169	24	450	qualification in progress	EOL notice 6 months
AST-P0007	part 4930-Q	optical sensor	$1,046	11	50	qualification in progress	no EOL commitment
AST-P0008	part 1348-F	castor assembly	$1,153	4	50	dual sourced	last-time-buy notice 12 months
AST-P0009	part 4107-I	battery module	$804	8	450	qualification in progress	last-time-buy notice 12 months
AST-P0010	part 3531-E	castor assembly	$1,098	7	600	qualification in progress	last-time-buy notice 12 months
AST-P0011	part 4511-Q	harness	$857	6	100	single source	EOL notice 6 months
AST-P0012	part 5179-N	optical sensor	$943	21	550	qualification in progress	no EOL commitment
AST-P0013	part 3583-E	gearbox	$797	6	600	single source	EOL notice 6 months
AST-P0014	part 3635-V	battery module	$1,972	23	450	qualification in progress	last-time-buy notice 12 months
AST-P0015	part 4528-D	harness	$1,389	12	250	single source	EOL notice 6 months
AST-P0016	part 2624-R	drive unit	$2,217	12	250	qualification in progress	no EOL commitment
AST-P0017	part 8737-R	controller board	$738	16	450	qualification in progress	last-time-buy notice 12 months
AST-P0018	part 2170-H	encoder	$321	25	100	qualification in progress	last-time-buy notice 12 months
AST-P0019	part 5577-H	encoder	$2,036	7	100	dual sourced	no EOL commitment
AST-P0020	part 8268-E	harness	$590	23	550	dual sourced	EOL notice 6 months
AST-P0021	part 9640-M	castor assembly	$2,125	18	50	dual sourced	EOL notice 6 months
AST-P0022	part 5158-N	encoder	$2,220	23	250	single source	no EOL commitment
AST-P0023	part 5689-E	controller board	$2,120	25	150	dual sourced	EOL notice 6 months
AST-P0024	part 3580-B	gearbox	$1,216	17	300	dual sourced	no EOL commitment
AST-P0025	part 1434-U	battery module	$1,828	24	200	dual sourced	last-time-buy notice 12 months
AST-P0026	part 3090-M	harness	$1,691	8	550	dual sourced	last-time-buy notice 12 months
AST-P0027	part 9809-E	encoder	$135	21	50	single source	EOL notice 6 months
AST-P0028	part 4699-C	encoder	$385	20	500	qualification in	no EOL

Asterion price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
						progress	commitment
AST-P0029	part 4543-O	castor assembly	$1,744	20	50	qualification in progress	no EOL commitment
AST-P0030	part 9774-Y	castor assembly	$2,123	16	350	dual sourced	no EOL commitment
AST-P0031	part 6643-E	controller board	$388	24	200	single source	no EOL commitment
AST-P0032	part 5450-X	gearbox	$1,345	9	450	qualification in progress	no EOL commitment
AST-P0033	part 7258-W	optical sensor	$245	13	300	qualification in progress	no EOL commitment
AST-P0034	part 1914-K	harness	$724	21	300	dual sourced	last-time-buy notice 12 months
AST-P0035	part 1505-N	gearbox	$1,942	22	50	single source	last-time-buy notice 12 months
AST-P0036	part 2445-R	harness	$2,386	13	150	qualification in progress	last-time-buy notice 12 months
AST-P0037	part 2672-L	castor assembly	$2,159	4	250	dual sourced	last-time-buy notice 12 months
AST-P0038	part 3518-M	castor assembly	$1,128	21	400	qualification in progress	EOL notice 6 months
AST-P0039	part 2273-Q	encoder	$1,762	7	500	qualification in progress	last-time-buy notice 12 months
AST-P0040	part 5652-R	castor assembly	$156	22	500	dual sourced	no EOL commitment
AST-P0041	part 6543-J	gearbox	$758	5	600	qualification in progress	last-time-buy notice 12 months
AST-P0042	part 3447-K	gearbox	$552	22	50	qualification in progress	last-time-buy notice 12 months
AST-P0043	part 7919-C	gearbox	$1,664	14	500	dual sourced	no EOL commitment
AST-P0044	part 5946-O	gearbox	$405	10	350	single source	no EOL commitment
AST-P0045	part 2742-D	harness	$1,843	17	450	qualification in progress	last-time-buy notice 12 months
AST-P0046	part 6416-A	drive unit	$2,090	25	400	dual sourced	EOL notice 6 months

6. Acceptance and change control - part 2 of 2

Because the 6. Acceptance and change control does not fit one page, its remainder is set out below under the same references. The sequence is unbroken either side of it.

Column definitions stated with the first part of the 6. Acceptance and change control govern the whole of it, and any qualification recorded there is carried forward here.

Asterion RaaS agreement - Exhibit D - Component Prices, Lead Times and Sourcing (continued, part 2 of 2)

Asterion price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
AST-P0047	part 5359-R	encoder	$2,228	14	150	single source	last-time-buy notice 12 months
AST-P0048	part 4644-U	harness	$1,966	23	550	single source	EOL notice 6 months
AST-P0049	part 8108-D	castor assembly	$847	6	600	qualification in progress	no EOL commitment
AST-P0050	part 9045-Y	encoder	$2,256	17	100	qualification in progress	last-time-buy notice 12 months
AST-P0051	part 1574-X	encoder	$572	14	400	single source	EOL notice 6

Asterion price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
							months
AST-P0052	part 8895-Q	castor assembly	$2,197	6	150	single source	no EOL commitment
AST-P0053	part 7158-N	drive unit	$1,045	6	100	single source	EOL notice 6 months
AST-P0054	part 6203-E	drive unit	$1,177	8	200	dual sourced	no EOL commitment
AST-P0055	part 6931-P	controller board	$2,170	8	200	single source	last-time-buy notice 12 months
AST-P0056	part 4821-F	castor assembly	$517	9	50	qualification in progress	no EOL commitment
AST-P0057	part 3040-Q	harness	$235	14	550	single source	no EOL commitment
AST-P0058	part 8687-L	harness	$2,305	21	300	qualification in progress	EOL notice 6 months
AST-P0059	part 6761-U	optical sensor	$981	15	350	qualification in progress	no EOL commitment
AST-P0060	part 7223-X	drive unit	$1,255	9	100	qualification in progress	last-time-buy notice 12 months
AST-P0061	part 4191-T	optical sensor	$1,499	24	50	qualification in progress	no EOL commitment
AST-P0062	part 7881-U	battery module	$2,374	6	350	qualification in progress	no EOL commitment
AST-P0063	part 5382-J	optical sensor	$656	6	550	dual sourced	no EOL commitment
AST-P0064	part 3577-X	gearbox	$1,095	14	50	dual sourced	EOL notice 6 months
AST-P0065	part 3494-T	gearbox	$1,806	8	150	dual sourced	EOL notice 6 months
AST-P0066	part 5549-G	battery module	$1,961	13	100	single source	no EOL commitment
AST-P0067	part 5322-V	battery module	$966	20	150	single source	EOL notice 6 months
AST-P0068	part 5919-E	optical sensor	$1,560	19	450	single source	last-time-buy notice 12 months
AST-P0069	part 3037-W	encoder	$1,606	22	600	single source	EOL notice 6 months
AST-P0070	part 1997-N	gearbox	$75	14	350	qualification in progress	EOL notice 6 months
AST-P0071	part 7719-S	optical sensor	$1,877	20	350	qualification in progress	EOL notice 6 months
AST-P0072	part 8495-D	castor assembly	$2,209	16	250	single source	EOL notice 6 months
AST-P0073	part 7726-G	encoder	$637	4	450	single source	last-time-buy notice 12 months
AST-P0074	part 2846-I	optical sensor	$2,386	24	500	qualification in progress	no EOL commitment
AST-P0075	part 2719-D	optical sensor	$917	20	450	single source	EOL notice 6 months
AST-P0076	part 7399-G	encoder	$1,643	7	50	qualification in progress	last-time-buy notice 12 months
AST-P0077	part 6290-I	castor assembly	$2,195	19	550	dual sourced	last-time-buy notice 12 months
AST-P0078	part 4961-H	encoder	$1,045	20	100	dual sourced	last-time-buy notice 12 months
AST-P0079	part 7571-G	gearbox	$196	19	300	single source	no EOL commitment
AST-P0080	part 9240-M	encoder	$120	21	100	qualification in progress	EOL notice 6 months
AST-P0081	part 4197-G	controller board	$2,051	15	50	qualification in progress	EOL notice 6 months
AST-P0082	part 4715-S	battery module	$2,191	14	200	dual sourced	EOL notice 6

Asterion price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
							months
AST-P0083	part 9327-O	encoder	$2,337	9	200	qualification in progress	EOL notice 6 months
AST-P0084	part 8229-N	encoder	$836	24	450	dual sourced	last-time-buy notice 12 months
AST-P0085	part 8345-T	harness	$1,123	11	400	qualification in progress	EOL notice 6 months
AST-P0086	part 7830-K	encoder	$147	6	550	dual sourced	last-time-buy notice 12 months
AST-P0087	part 3651-T	gearbox	$2,273	22	150	qualification in progress	last-time-buy notice 12 months
AST-P0088	part 5288-L	drive unit	$1,142	23	100	qualification in progress	no EOL commitment
AST-P0089	part 3493-D	encoder	$584	18	350	single source	EOL notice 6 months
AST-P0090	part 6610-S	castor assembly	$1,088	23	600	qualification in progress	no EOL commitment
AST-P0091	part 2284-P	battery module	$2,417	10	200	qualification in progress	last-time-buy notice 12 months
AST-P0092	part 2406-P	controller board	$1,821	6	150	dual sourced	last-time-buy notice 12 months

7. Data, intellectual property and licences

Nothing in Exhibit C entitles Asterion to assume that each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. Deliberately so: a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Running 6 sites in third-party logistics, Asterion takes this obligation at site level rather than centrally under the Master Robotics-as-a-Service Agreement. Where Asterion has raised a query the Provider has answered by reference to Article 9 (Customer Obligations), and the exchange is on the contract file.

The parties have recorded in Schedule 2 that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. Procedurally, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. 6 sites in Ohio means Asterion applies the Master Robotics-as-a-Service Agreement through its regional operations team rather than through head office. The obligation as it applies to Asterion was tightened at signature, and Article 12 (Intellectual Property) carries the negotiated wording rather than the standard wording.

Asterion bears the risk that spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. Materially, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. 6 sites in Ohio means Asterion applies the Master Robotics-as-a-Service Agreement through its regional operations team rather than through head office. Asterion has taken the point up once since signature; the correspondence is filed against Article 2 (Definitions) and did not result in an amendment.

The Provider warrants to Asterion that acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. Practically, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. In third-party logistics the burden of this sits with operations, and Asterion discharges it across 6 sites under the Master Robotics-as-a-Service Agreement. Asterion has taken the point up once since signature; the correspondence is filed against Article 6 (Fees and Payment) and did not result in an amendment.

8. Indemnities and limitation of liability

On a proper construction of Exhibit B, each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost.

Procedurally, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. The Master Robotics-as-a-Service Agreement reaches each of Asterion's 6 sites separately, which is how a third-party logistics operator in Ohio administers it. For a customer of Asterion's size the clause is unremarkable, but Article 3 (Scope of Supply) is drafted more tightly here than in the Provider's standard form.

Asterion is not obliged, under Exhibit A, to accept that the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. As between them, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. In third-party logistics the burden of this sits with operations, and Asterion discharges it across 6 sites under the Master Robotics-as-a-Service Agreement. Where Asterion has raised a query the Provider has answered by reference to Article 3 (Scope of Supply), and the exchange is on the contract file.

The Provider warrants to Asterion that each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. Strictly, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Site count matters here: Asterion has 6 sites, and the Master Robotics-as-a-Service Agreement treats each as a separate delivery point. For a customer of Asterion's size the clause is unremarkable, but Article 12 (Intellectual Property) is drafted more tightly here than in the Provider's standard form.

Article 11 (Data and Telemetry) provides that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. In point of remedy, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. The Master Robotics-as-a-Service Agreement reaches each of Asterion's 6 sites separately, which is how a third-party logistics operator in Ohio administers it. The obligation as it applies to Asterion was tightened at signature, and Article 16 (Term and Termination) carries the negotiated wording rather than the standard wording.

Asterion RaaS agreement - Schedule 5 - Notices, Periods and Addressees

Asterion notice type	Subject	Period	Addressee	Method	Deemed given
AST-N001	price adjustment	10 days	designated account executive	email with acknowledgement	on despatch
AST-N002	change of control	55 days	designated account executive	portal notice	on receipt
AST-N003	force majeure	50 days	Contracts Manager	courier and email	on the second business day after despatch
AST-N004	non-renewal	35 days	General Counsel	portal notice	on receipt
AST-N005	force majeure	15 days	General Counsel	courier only	on the second business day after despatch
AST-N006	non-renewal	5 days	Chief Operating Officer	email with acknowledgement	on despatch
AST-N007	renewal election	40 days	General Counsel	courier only	on receipt
AST-N008	change of control	80 days	Chief Operating Officer	courier only	on despatch
AST-N009	termination for cause	20 days	designated account executive	courier only	on despatch
AST-N010	termination for cause	20 days	General Counsel	portal notice	on receipt
AST-N011	price adjustment	85 days	Contracts Manager	courier and email	on the second business day after despatch
AST-N012	non-renewal	65 days	Contracts Manager	courier and email	on despatch
AST-N013	renewal election	45 days	designated account executive	portal notice	on the second business day after despatch
AST-N014	renewal election	30 days	designated account executive	courier and email	on despatch
AST-N015	renewal election	20 days	General Counsel	courier and email	on receipt
AST-N016	renewal election	60 days	General Counsel	courier only	on the second business day after despatch
AST-N017	breach	20 days	Contracts Manager	courier and email	on despatch
AST-N018	force majeure	35 days	General Counsel	courier only	on the second business day after despatch

Asterion notice type	Subject	Period	Addressee	Method	Deemed given
AST-N019	breach	50 days	Contracts Manager	courier and email	on the second business day after despatch
AST-N020	termination for cause	65 days	Chief Operating Officer	courier only	on despatch
AST-N021	non-renewal	55 days	Contracts Manager	courier and email	on receipt
AST-N022	non-renewal	55 days	designated account executive	portal notice	on despatch
AST-N023	breach	25 days	designated account executive	courier and email	on the second business day after despatch
AST-N024	non-renewal	35 days	Contracts Manager	portal notice	on receipt
AST-N025	termination for cause	15 days	General Counsel	portal notice	on the second business day after despatch
AST-N026	price adjustment	20 days	General Counsel	portal notice	on receipt
AST-N027	assignment request	20 days	Contracts Manager	courier only	on despatch
AST-N028	assignment request	80 days	Chief Operating Officer	portal notice	on despatch
AST-N029	assignment request	40 days	General Counsel	courier only	on receipt
AST-N030	price adjustment	50 days	Contracts Manager	courier and email	on receipt
AST-N031	breach	45 days	Contracts Manager	portal notice	on the second business day after despatch
AST-N032	breach	40 days	General Counsel	courier and email	on despatch
AST-N033	termination for cause	45 days	Contracts Manager	email with acknowledgement	on the second business day after despatch
AST-N034	force majeure	55 days	Chief Operating Officer	portal notice	on receipt
AST-N035	service credit claim	5 days	Contracts Manager	email with acknowledgement	on the second business day after despatch
AST-N036	termination for cause	90 days	designated account executive	courier only	on the second business day after despatch
AST-N037	service credit claim	65 days	Contracts Manager	portal notice	on receipt
AST-N038	breach	90 days	General Counsel	courier only	on despatch
AST-N039	termination for cause	40 days	Chief Operating Officer	email with acknowledgement	on despatch
AST-N040	service credit claim	60 days	designated account executive	courier only	on despatch
AST-N041	service credit claim	35 days	designated account executive	courier only	on despatch
AST-N042	price adjustment	65 days	designated account executive	portal notice	on despatch
AST-N043	change of control	75 days	designated account executive	courier and email	on the second business day after despatch
AST-N044	force majeure	45 days	designated account executive	courier only	on the second business day after despatch
AST-N045	price adjustment	20 days	Contracts Manager	portal notice	on the second business day after despatch
AST-N046	service credit claim	75 days	Contracts Manager	portal notice	on receipt
AST-N047	renewal election	35 days	designated account executive	portal notice	on receipt
AST-N048	termination for cause	75 days	General Counsel	courier and email	on despatch
AST-N049	service credit claim	50 days	designated account executive	courier and email	on despatch
AST-N050	service credit claim	25 days	Chief Operating Officer	portal notice	on the second business day after despatch
AST-N051	service credit claim	70 days	Chief Operating Officer	email with acknowledgement	on the second business day after despatch
AST-N052	assignment request	75 days	Chief Operating Officer	courier and email	on despatch
AST-N053	breach	75 days	General Counsel	portal notice	on the second

Asterion notice type	Subject	Period	Addressee	Method	Deemed given
					business day after despatch
AST-N054	breach	75 days	Chief Operating Officer	courier only	on despatch
AST-N055	service credit claim	55 days	designated account executive	email with acknowledgement	on receipt
AST-N056	service credit claim	70 days	General Counsel	courier and email	on despatch
AST-N057	breach	90 days	Chief Operating Officer	email with acknowledgement	on despatch
AST-N058	non-renewal	80 days	General Counsel	email with acknowledgement	on despatch
AST-N059	non-renewal	40 days	Contracts Manager	email with acknowledgement	on the second business day after despatch
AST-N060	non-renewal	90 days	General Counsel	courier only	on despatch
AST-N061	non-renewal	25 days	Contracts Manager	courier only	on the second business day after despatch
AST-N062	force majeure	55 days	designated account executive	portal notice	on receipt
AST-N063	force majeure	50 days	designated account executive	portal notice	on the second business day after despatch
AST-N064	non-renewal	35 days	General Counsel	courier only	on despatch
AST-N065	termination for cause	60 days	Contracts Manager	email with acknowledgement	on the second business day after despatch
AST-N066	change of control	30 days	General Counsel	courier only	on receipt
AST-N067	service credit claim	20 days	designated account executive	email with acknowledgement	on the second business day after despatch
AST-N068	service credit claim	35 days	designated account executive	portal notice	on despatch
AST-N069	service credit claim	5 days	Contracts Manager	courier and email	on the second business day after despatch
AST-N070	assignment request	55 days	designated account executive	portal notice	on despatch
AST-N071	force majeure	65 days	General Counsel	email with acknowledgement	on the second business day after despatch
AST-N072	price adjustment	45 days	designated account executive	email with acknowledgement	on despatch
AST-N073	non-renewal	25 days	Contracts Manager	courier and email	on the second business day after despatch
AST-N074	termination for cause	20 days	Chief Operating Officer	courier only	on despatch
AST-N075	breach	35 days	Chief Operating Officer	courier and email	on the second business day after despatch
AST-N076	change of control	35 days	General Counsel	email with acknowledgement	on receipt
AST-N077	termination for cause	85 days	General Counsel	courier only	on despatch
AST-N078	force majeure	90 days	designated account executive	courier and email	on receipt

9. Term, termination and transition

Article 12 (Intellectual Property) of the Master Robotics-as-a-Service Agreement is to be construed so that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. In terms of consequence, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. For Asterion, a third-party logistics operator running 6 sites out of Ohio, the point matters because the Master Robotics-as-a-Service Agreement is administered site by site. The Asterion file records the position as at the last amendment, and Article 16 (Term and Termination) is the reference a reviewer should cite when raising it.

Asterion acknowledges that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. As to enforcement, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Site count matters here: Asterion has 6 sites, and the Master Robotics-as-a-Service Agreement treats each as a separate delivery point. For a customer of Asterion's size the clause is unremarkable, but Article 2 (Definitions) is drafted more tightly here than in the Provider's standard form.

Asterion pays the fees under Exhibit A in consideration of the Provider's undertaking that title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. Deliberately so: the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Asterion treats the obligation as a site-level matter across its 6 sites in Ohio, consistent with the Master Robotics-as-a-Service Agreement. The obligation as it applies to Asterion was tightened at signature, and Article 10 (Change Control) carries the negotiated wording rather than the standard wording.

Asterion and the Provider agree that each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. Textually, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. In third-party logistics the burden of this sits with operations, and Asterion discharges it across 6 sites under the Master Robotics-as-a-Service Agreement. Administration of this obligation for Asterion sits with the account team rather than with central contracts, and Article 12 (Intellectual Property) is where it is evidenced.

10. Assignment, notices and general

Article 18.2 of this instrument records a departure from the Provider's standard position: no assignment, including by operation of law or on a change of control of the Provider, is effective without the Customer's prior written consent, which the Customer may withhold in its discretion. The provision was negotiated at signature and is not qualified elsewhere in the Master Robotics-as-a-Service Agreement; a reader reconciling this instrument against the Provider's standard terms should treat Article 18.2 as governing.

Asterion Logistics Holdings LLC has notified the Provider that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. In point of remedy, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Running 6 sites in third-party logistics, Asterion takes this obligation at site level rather than centrally under the Master Robotics-as-a-Service Agreement. Asterion has taken the point up once since signature; the correspondence is filed against Article 7 (Service Levels) and did not result in an amendment.

Asterion retains the right, notwithstanding Article 9 (Customer Obligations), to require that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. As drafted, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Because Asterion is a Ohio third-party logistics business with 6 sites, the Master Robotics-as-a-Service Agreement devolves this to the site manager. Asterion has taken the point up once since signature; the correspondence is filed against Article 19 (Confidentiality) and did not result in an amendment.

For the purposes of the Master Robotics-as-a-Service Agreement, a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. On the negotiated text, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. 6 sites in Ohio means Asterion applies the Master Robotics-as-a-Service Agreement through its regional operations team rather than through head office. Because Asterion operates in third-party logistics, the practical burden of this clause falls on its Ohio operation, and Article 21 (Governing Law and Disputes) governs how it is measured.

Asterion has agreed, and the Provider has accepted, that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. Per the amendment history, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Site count matters here: Asterion has 6 sites, and the Master Robotics-as-a-Service Agreement treats

each as a separate delivery point. Notices under Article 10 (Change Control) go to the contracting entity named in the recital and not to any Asterion affiliate that may operate a site.

Except as Article 12 (Intellectual Property) permits, on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. Intended effect: the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. In third-party logistics the burden of this sits with operations, and Asterion discharges it across 6 sites under the Master Robotics-as-a-Service Agreement. Notices under Article 2 (Definitions) go to the contracting entity named in the recital and not to any Asterion affiliate that may operate a site.

Asterion acknowledges that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. On the face of the clause, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Ohio is where Asterion runs third-party logistics operations across 6 sites, and the Master Robotics-as-a-Service Agreement follows that footprint. For a customer of Asterion's size the clause is unremarkable, but Article 2 (Definitions) is drafted more tightly here than in the Provider's standard form.